

26CHCV01668 26CHCV01668

County: los-angeles

Division: Civil Law and Motion

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Hearing date: 2026-06-24

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Case Number: 26CHCV01668 Hearing Date: June 24, 2026 Dept: F43

Dept. F43

Hearing Date: 06-24-26

Case # 26CHCV01668, Stevens v. Pelaez,

et al.

Trial Date: None set.

APPLICATION FOR A

WRIT OF POSSESSION

MOVING PARTY: Plaintiff Dawn Stevens, in pro per

RESPONDING PARTY: No response was filed.

RELIEF REQUESTED

Order granting plaintiff's application for

writs of possession for dogs known as Decker and Mallory.

RULING: Application is denied without prejudice.

SUMMARY OF ACTION

Plaintiff Dawn Stevens (Plaintiff) alleges

she is the lawful owner of two dogs:

Decker, her licensed service dog and mobility assistant; and Mallory, a

Belgian Malinois puppy. On October 28,

2025, Plaintiff suffered a medical emergency and was transported to West Hills

Hospital due to severe respiratory distress and critically low oxygen

levels. Plaintiff temporarily entrusted

her dogs to James De Jesus for the short-term during her hospitalization. However, on October 29, 2025, defendant Pablo

Pelaez obtained possession of the dogs without Plaintiff's authorization and falsely

represented to De Jesus that Plaintiff had authorized him to retrieve the dogs. De Jesus relied on the assertion and

surrendered possession of the dogs to defendant Pelaez. Pelaez did not return the dogs. Plaintiff believes defendants Ashley Castro,

Dana Carrara, Redline Rescue, and Hector Ruiz Romo assisted defendant Pelaez in

withholding, transferring, fostering, and detention of both dogs. Defendant Carrara created a fundraiser and

public representations concerning at least one of the dogs. Redline Rescue through defendant Romo benefited

from withholding the dogs without Plaintiff's consent. Plaintiff believes the dog Decker is

currently in the possession of defendant Gina Quinones in Moorpark, California

and that Mallory is currently in the possession of defendant Mi Kyoung Chaing,

also known as Adrienne, in Las Vegas, Nevada.

Plaintiff has demanded the return of her dogs directly and through

others but defendants have not returned them.

Plaintiff further alleges Decker's microchip registration was altered or transferred without her knowledge.

On April 24, 2026, Plaintiff filed this

action against the named defendants. The

First Amended Complaint, filed on April 29, 2026, asserts (1) conversion, (2)

trespass to chattels, (3) claim and delivery, (4) declaratory relief, (5)

intentional infliction of emotional distress, and (6) negligence. Plaintiff is self-represented.

On May 29, 2026, defendant Gina Quinones

filed an answer to the Complaint.

On May 5, 2026, Plaintiff filed an

application for a writ of possession for the dogs Decker and Mallory. The application is supported by the

Declaration of Dawn Stevens, Declaration of Elizabeth Petito-Martinez,

Declaration of Lamar Preston Hall, Declaration of James De Jesus, and

Plaintiff's supplemental declaration in support of claim and delivery. It is unclear whether Plaintiff served the

application on the defendants.

No opposition was filed.

ANALYSIS

A. Writs of Possession

Upon, or after, filing a complaint, the plaintiff may

apply for a writ of possession by filing a written application for the writ

with the court in which the action is brought.

(Code Civ. Proc., § 512.010, subd. (a).)

The application must be executed under oath and include:

(1) A

showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff's claim is a written instrument, a copy of the Instrument shall be attached.

(2) A

showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.

(3) A

particular description of the property and a statement of its value.

(4) A

statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.

(5) A

statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure.

(Code Civ. Proc., § 512.010, subd.

(b).)

Attached to the Dawn Stevens declaration are the

following exhibits: (1) a copy of a dog

license issued to Plaintiff for Decker the dog by the City of Los Angeles,

Department of Animal Services on December 15, 2025; (2) a bill of sale for a

Belgian Malinois puppy provided to Plaintiff by the seller on September 17,

2025; (3) 24Petwatch microchip registry transfer/restoration documents

concerning Decker the dog; (4) a copy of Plaintiff's wristband from her stay at

West Hills Hospital, dated October 28, 2025; (5) an email summary of a GoFundMe

fundraiser created by defendant Dana Carrara for a dog named Mallory; and (7) screenshots

of the GoFundMe fundraiser statements concerning the dog Mallory's alleged

condition and claimed rescue circumstances.

(Declaration of Dawn Stephens, Exh. A-F.) To the best of Plaintiff's knowledge, Decker

and Mallory were not taken for any tax, assessment, or fine pursuant to the

statute.

The evidence demonstrates that Plaintiff was issued a license for a dog named Decker on December 15, 2025. The quality of the document presented to the court makes it difficult to decipher all the words on the document but the license appears to state that Decker's "special purpose" was "disabled." This supports Plaintiff's allegation that Decker is a service dog. (Compl. ¶ 14.) Plaintiff claims Decker has an estimated value of \$5,000. (Stevens Decl. ¶ 38(A).) Furthermore, the bill of sale indicates that a female Belgian Malinois puppy, matching Plaintiff's description of Mallory, was purchased by Plaintiff for \$1,000 on September 17, 2025. This also matches the allegations in Plaintiff's complaint. (Compl. ¶ 15.) Although Plaintiff provides the 24Petwatch microchip registry transfer form identifying a dog named Decker, this does not demonstrate that Plaintiff was Decker's original owner. Additionally, the inclusion of the photos and information from the GoFundMe fundraisers as to Mallory do not assist the court with determining whether the dog in these photos is the dog that was purchased by Plaintiff on September 17, 2025. If Plaintiff had provided the original 24Petwatch microchip registration and her own photos of Decker and Mallory, the court would be better positioned to determine whether the dogs are the same.

Attached to the Declaration of Elizabeth Petito-Martinez

is photographs taken by Petito-Martinez of Plaintiff with her dogs at the

Freedom Center Church in Chatsworth, CA on October 25, 2025. (Declaration of Elizabeth Petito-Martinez,

Exh. A.) Ms. Petito-Martinez volunteers

weekly at the Freedom Center and knows Plaintiff through her regular attendance

at church events and regularly observed Plaintiff with her dogs at weekly

Saturday gatherings. (Id. ¶

4.) Ms. Petito-Martinez presents photos she

took of Plaintiff and her dogs at the Freedom Center on October 25, 2025, the

Saturday before Plaintiff's medical emergency.

(Id. ¶¶ 6-8.) However, the

document containing the photographs appears to be black and white photocopies

of color photos which the court cannot properly view or decipher. Without clear photos, the court cannot

determine whether Ms. Petito-Martinez's photos include the same dog that is

shown in the GoFundMe photographs provided by the Plaintiff.

Lamar Preston Hall claims he has known

Plaintiff for almost two years and was her immediate neighbor for more than a

year. (Declaration of Lamar Preston Hall

¶ 3.) Mr. Hall observed Plaintiff with

her dogs, mainly Decker, on many occasions and never observed anything that

caused him to be concerned about the dogs' safety, care or well-being. (Id. ¶ 5.) Mr. Hall claims he knows defendant Pablo

Pelaez and saw him bring items to Plaintiff for Decker on several

occasions. (Id. ¶¶ 9, 12.) On October 29, 2025, after Plaintiff had

returned home from the hospital, Mr. Hall overheard Plaintiff speak with

defendant Pelaez about letting the dogs stay with James De Jesus, that the dogs

were gone, that her wallet and other valuables were gone, but that she did not

believe De Jesus stole the items. (Id.

¶¶ 19-20.) According to Mr. Hall, Pelaez

became visibly angry, yelled at Plaintiff, and told Plaintiff he was done

with her, that this was her last chance, and that he was going to find the dogs

and she would never see them again. (Id.

¶ 21.) Pelaez then drove away. (Id. ¶ 26.) This suggests that at some point Pelaez went

looking for the dogs.

In his supporting declaration, James De Jesus

confirms he took the dogs and Plaintiff's wallet and valuables with him while

running some errands on October 29, 2025.

(Declaration of James De Jesus ¶¶ 8-9.)

As De Jesus was completing his errands at the Trebek Center in

Northridge, an individual named "Pablo" pulled up in his car and told De Jesus

that Plaintiff was fine and sent him to retrieve the dogs. (Id. ¶¶ 13-14.) De Jesus had previously met Pablo at

Plaintiff's home. Because De Jesus knew

Plaintiff trusted Pablo and Pablo made assurances about taking the dogs and

Plaintiff's property back to her, De Jesus gave Pablo the dogs and Plaintiff's

wallet and valuables. (Id. ¶¶

16-17.) A few days later, Plaintiff went

to the Trebek Center looking for the dogs and her personal property. (Id. ¶ 19.)

This confirms that defendant Pablo Pelaez

took possession of Decker and Mallory at the Trebek Center in Northridge, CA on

October 29, 2025.

Plaintiff requests writs of possession for

Decker and Mallory. In her supplemental

declaration, Plaintiff claims that Decker is presently in defendant Gina

Quinones's possession at her residence: 6809 Auburn Circle, Moorpark,

California 93021. (Suppl. Decl. for

Claim and Delivery ¶ 32; Stevens Decl. ¶

28.) Based on an online database and

skip-trace searches, Plaintiff believes Mallory is presently located at or

associated with defendant Mi Kyoung Chaing at 7413 Cleghorn Canyon Way, Las

Vegas, Nevada 89113. (Suppl. Decl. for

Claim and Delivery ¶ 34; Stevens Decl. ¶

29.)

However, the court cannot determine whether

the dogs Plaintiff claims are Decker and Mallory are the dogs which Plaintiff

claims are currently in possession of defendants Gina Quinones and Mi Kyoung

Chaing. As mentioned above, the

documentary evidence provided by Plaintiff demonstrates she purchased a dog

license for Decker, that she attempted to transfer ownership of Decker's

microchip to herself, that she purchased a female Belgian Malinois puppy on

September 17, 2025, and that she paid \$1,000 for the puppy. The photos provided by Ms. Petito-Martinez

are low in quality and make it difficult for the court to determine whether

either of the dogs in those photos match the dog in the GoFundMe photos. Furthermore, Plaintiff provides no photos of

her own that were taken before her medical incident. Nor has Plaintiff demonstrated through

evidence how the dogs were transferred from defendant Pelaez transferred to

defendants Gina Quinones and Mi Kyoung Chaing.

Finally, Plaintiff does not demonstrate that she

served notice of her application on all defendants in this matter. "Each party shall file with the court and

serve upon the other party within the time prescribed by rule any affidavits

and points and authorities intended to be relied upon at the hearing." (Code Civ. Proc., § 512.050; see also Code Civ. Proc., § 512.040

[requirements for notice of application].)

Failure to direct service to the correct party or their attorney of

record therefore renders service defective under the statute. A court may deny a motion without prejudice

on the ground that service is defective and require the party to properly serve

and refile the motion before considering the motion on the merits. (Romero

v. Los Angeles Rams (2023) 91 Cal.App.5th 562, 564, fn. 1.) The court has reviewed Plaintiff's

application and supporting papers and finds that she has failed to file proofs

of service, indicating the defendants were served with her writ of possession

application.

Therefore, the court denies Plaintiff's

application without prejudice.

CONCLUSION and ORDER

Plaintiff's application for a writ of

possession is denied without prejudice.

Plaintiff to give notice.